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UNITED STATES DISTRICT COURT

FOR THE DISTRICT OF ARIZONA

Kevin D Turnage, Plaintiff, v. **ROBERT F. KENNEDY, JR,** Secretary, U.S. DEPARTMENT OF HEALTH AND HUMAN SERVICES, INDIAN HEALTH SERVICE, Defendants.	Case No.: CV-25-03367-PHX-SMB **MOTION FOR EXPEDITED CONSIDERATION OF PENDING THIRD-PARTY SUBPOENA (DOC 51)**

COMES NOW Plaintiff Kevin D. Turnage, pro se, and respectfully moves this Court to grant expedited consideration of his pending *Motion for Leave to Serve Third-Party Subpoena on Google LLC* (Doc 51, filed January 10, 2026).

I. STATEMENT OF FACTS

1. Plaintiff alleges that his Google account (kdturnage@gmail.com) was unlawfully accessed on **December 18, 2025** and subsequently disabled by Google.
2. The account contains **electronically stored information (ESI)**—e-mail, Google-Drive documents, and access logs—critical to Plaintiff's retaliation, whistle-blower, and Title VII claims.
3. Plaintiff sent Google a **preservation notice** on **December 31, 2025** and followed up with a **letter via certified mail** on **January 7, 2026** requesting preservation and a data export.
4. Google replied on **January 9, 2026**, stating that "Google only takes steps to preserve data upon being properly served with valid legal process." **No preservation** was provided.
5. Plaintiff filed **Doc 51** on **January 10, 2026**, seeking a court order authorizing a subpoena to compel Google to preserve and produce the ESI, asserting that without such an order the evidence will be **permanently destroyed** under Google's automatic retention policies.
6. As of **February 15, 2026**, the Court has not ruled on Doc 51, and Google continues to retain the right to delete the data.

II. LEGAL STANDARD

- **Rule 26(d)(1)** permits discovery before the Rule 26(f) conference when authorized by a court order. The "good-cause" standard applies—courts may order early discovery where the plaintiff shows a substantial likelihood that evidence will be

lost. *See* **Schwartz v. Lumico Ins. Co.**, 991 S.D. Ohio 2024 WL 6715372 (citing the "good-cause" standard for pre-Rule 26(f) discovery).

- **Rule 45** authorizes a court to issue a subpoena to a non-party. The court may compel production when the request is *narrowly tailored* and when the information is *not otherwise obtainable*. *See* **Century International Arms, Inc. v. XTech Tactical, LLC**, 2020 WL 12788888 (S.D. Nev. 2020) (granting a pre-Rule 26(f) subpoena where data spoliation was imminent).
- **Strike 3 Holdings, LLC v. Doe**, 329 F.R.D. 518, 521 (S.D.N.Y. 2019) outlines the five factors for assessing a pre-Rule 26(f) subpoena: (1) prima-facie showing of relevance; (2) specificity; (3) lack of alternative means; (4) need to advance the claim; (5) privacy considerations.
- **Burlington Northern & Santa Fe Ry. v. White**, 548 U.S. 53, 57 (2006) (good-cause outweighs prejudice when evidence will be destroyed).

III. GOOD-CAUSE ANALYSIS – THE FIVE FACTORS

Factor	Plaintiff's Position
1. Prima-facie relevance	The Google account contains e-mail and documents that directly evidence the retaliatory motive behind the agency's adverse personnel actions (e.g., communications about the "perp-walk," notice-leave orders, and internal memos linking the leave to Plaintiff's protected disclosures).
2. Specificity	Plaintiff's subpoena is limited to the single account **kdturnage@gmail.com**, the date range **December 1, 2025 – February 15, 2026**, and only to ESI (e-mail, Drive files, logs, metadata).

Factor	Plaintiff's Position
3. Lack of alternative means	Google has expressly refused voluntary preservation. The data is stored only on Google's servers; Plaintiff has no control or copy. No third-party holds a duplicate.
4. Need to advance claim	The ESI is essential to prove the causal nexus between Plaintiff's protected disclosures and the agency's retaliatory actions. Without it, Plaintiff cannot demonstrate the timing, content, or intent behind the agency's decisions.
5. Privacy considerations	The subpoena is narrowly tailored, seeks only information directly related to the case, and includes appropriate protective-order provisions (see **Exhibit 3 Document 52** – [PROPOSED] ORDER GRANTING PLAINTIFF'S MOTION FOR LEAVE TO SERVE THIRD-PARTY SUBPOENA PRIOR TO RULE 26(f) CONFERENCE).

All five factors weigh heavily in favor of granting the subpoena.

IV. PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that the Court:

7. **GRANT** Plaintiff's pending *Motion for Leave to Serve Third-Party Subpoena on Google LLC* (Doc 51) **on an expedited basis** (e.g., a hearing within ten (10) days of the filing of this motion);
8. **ORDER** Google LLC to **preserve and produce** all ESI described in Doc 51 within **fifteen (15) days** of the Court's order, subject to a protective order protecting privileged or confidential information;
9. **DECLARE** that the Court finds good cause under Rule 26(d)(1) and Rule 45 to issue the subpoena **prior to the Rule 26(f) conference**;

10. **Award Plaintiff reasonable attorney's fees and costs** incurred in filing this motion, pursuant to 28 U.S.C. § 2412; and

11. **GRANT such other and further relief** as the Court deems just and proper.

V. CERTIFICATE OF SERVICE

I hereby certify that on this 15th day of February, 2026, I electronically filed the foregoing Motion with the Clerk of Court using the CM/ECF system, which will send notification of such filing to all counsel of record.

/s/ Kevin D. Turnage

Kevin D. Turnage

Pro Se Plaintiff